

GOVERNANCE INSTRUMENT · SCDES AI COUNCIL

AI Council Charter and Adoption Memorandum

Establishing the governing body for artificial intelligence at the South Carolina Department of Environmental Services

Issued by: Myra Reece, Director, South Carolina Department of Environmental Services

Effective date: 15 July 2026

Supersedes: None; original instrument

Review cycle: Annually, at first regular meeting of the calendar year

Preamble

The South Carolina Department of Environmental Services (SCDES) hereby establishes the SCDES AI Council to govern the responsible design, procurement, deployment, monitoring, and retirement of artificial intelligence systems in service of the Department's mission of Science, Service, and Sustainability. This Charter constitutes both the establishment of the Council and the Department's formal adoption of the SCDES AI Governance Framework and its supporting instruments.

1. Establishment. The SCDES AI Council is hereby established under the authority of the Director to govern the design, procurement, deployment, monitoring, and retirement of artificial intelligence systems used by the Department, its bureaus, and any contractor acting on the Department's behalf.

2. Purpose. The Council implements the SCDES AI Governance Framework and the SCDES AI Operations Manual with associated appendices across all programs, offices, and contracted work of the Department; ensures alignment with the South Carolina State Agencies AI Strategy; and reports annually to the Director on the state of AI at SCDES.

3. Membership. The Council consists of four standing members: the Agency Director, who serves as Council Chair; the CTO; and two executive-level delegates appointed annually by the Director. The chair may seat non-voting standing invitees as the work of the Council requires.

4. Decision-making. The Council decides by consensus. Where consensus cannot be reached, the chair records the disagreement and elevates the matter to the Director for

resolution. Quorum requirements, conflict-of-interest procedures, and the independent-review requirement for High-Risk projects are set out in Appendix N (Council Operating Procedures).

5. Cadence. The Council shall meet no less than quarterly and additionally whenever a Gate 0 through Gate 5 review is on the agenda; a Level 1 or greater AI incident requires urgent Council attention; or a member requests an extraordinary meeting for good cause.

6. Adoption. By this Charter, the Department adopts the SCDES AI Governance Framework, the SCDES AI Operations Manual, and Appendices A through N as the binding governance instruments of the Department, effective on the date of signature below. These documents shall be published to the Department's internal governance repository and referenced in the Department's public AI Governance Compliance Plan.

7. Amendment. Amendments to this Charter, to the Framework, to the Operations Manual, or to any appendix shall follow the procedure set out in Appendix N and shall require the approval of the Director following Council recommendation.

8. Effect. This Charter takes effect upon signature and shall remain in effect until superseded by a subsequent instrument approved by the Director.

Approval



Director, South Carolina Department of Environmental Services

Signature required to establish the Council and adopt the Framework.



Date